

Guddi Kesarwani v. State of U.P.

Allahabad High Court · Division Bench · 21 June 2024 · 2024:AHC:104730-DB · Writ - C No. 20230 of 2024 · **Writ disposed; apply under clause 4.4(a); consider in accordance with law**

HEADNOTE

The Electricity Supply Code, 2005 is a self-contained code with a full-fledged mechanism to redress connection grievances. A person in possession claiming a share in pending partition has a right to seek a new domestic connection under clause 4.4(a). The High Court disposed of the writ without opinion on merits, leaving the petitioner to apply under clause 4.4(a) and directing the licensee to examine and remedy any such application in accordance with law preferably within six weeks.

FACTUAL SUMMARY

Guddi Kesarwani sought certiorari against the Executive Engineer, Electricity Distribution Division Rambagh 1A, Prayagraj, and mandamus for a domestic electricity connection. The Electricity Consumer Grievance Redressal Forum, Prayagraj, had on 20 July 2022 directed her to apply for a fresh connection. She asserted that the necessary documents had been supplied but not considered, that she was in possession of the house, and that she claimed only a 1/7th share in pending partition suit O.S. No. 11 of 2022.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

processing of application for new supply

HOLDING

Clause 4.4(a) of the Electricity Supply Code, 2005 governs processing of applications for new supply and requires a complete application with proof of ownership or occupancy (including indemnity as per Annexure 4.2) and, among other documents, owner's consent. The Code is a self-contained enactment with a full-fledged grievance mechanism. The petitioner has a right to seek a new electricity connection under clause 4.4(a). The writ was disposed of without opinion on merits, leaving the petitioner to apply under that clause within a week, with the licensee to examine and remedy any such application strictly in accordance with law preferably within six weeks. ¶ 4-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED ON THE EXISTING PAPERS TO A DOMESTIC CONNECTION, INCLUDING THE EFFECT OF THE PENDING PARTITION SUIT AND THE EXECUTIVE ENGINEER'S IMPUGNED ORDER

the Court expressly declined to opine on merits and relegated the petitioner to a fresh application under clause 4.4(a)

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